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Case Number: 26STCV12280 Hearing Date: June 23, 2026 Dept: 414

26STCV12280 Perry Roshan-Zamir v. Aaron

Kudla, et al.

Tuesday,

June 23, 2026

[TENTATIVE] ORDER DENYING ANTI-SLAPP MOTION OF

DEFENDANT, COURT-APPOINTED RECEIVER, AARON KUDLA TO PLAINTIFF’S COMPLAINT

(1498)

I.

BACKGROUND

The

complaint alleges that Plaintiff served as general counsel to Defendant, J.K.

Residential Services, Inc. (“JK”). Plaintiff alleges that Defendant, Aaron Kudla,

and others interviewed him for the position with JK. Defendant Kudla informed him

that he was serving as a court-appointed receiver for JK, and that the general counsel position would last as long as the receivership was in place, no less than one year. Plaintiff began employment with JK on October 6, 2025. He was abruptly terminated on December 8, 2025. Plaintiff alleges claims for breach of contract fraud and violations of the Labor Code, including retaliatory discharge.

Defendant Kudla now moves to strike the complaint on grounds the claims against him as arise from protected activity. Plaintiff cannot meet his burden of showing a probability of prevailing on the merits.

II.

LEGAL STANDARDS

The anti-SLAPP statute codified at Code of Civil Procedure section 425.16 provides that any act of a person “in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established a probability that the plaintiff will prevail on the claim." (Code Civ. Proc., § 425.16 (b).) The statute provides a procedure for "weeding out, at an early stage, meritless claims arising from protected activity."(Baral

v. Schnitt (2016) 1 Cal.5th 376,

384.)

As the moving party, Defendant bears the

initial burden of establishing that the challenged allegations or claims “arise

from protected activity in which the defendant has engaged." (Bonni

v. St. Joseph Health System (2021)

11 Cal.5th 995, 1009; Code Civ. Proc., § 425.16 subd. (b).) To that end, the trial court is

to "consider the elements of the challenged claim and what actions by

the defendant supply those elements and consequently form the basis for

liability”. (Bonni

v. St. Joseph Health System (2021)

11 Cal.5th 995, 1009

["In making its determination, the court shall consider the pleadings and

supporting and opposing affidavits stating the facts upon which the

liability or defense is based"] [emphasis added].)

If the threshold burden is met, the

burden shifts to plaintiff to demonstrate a probability of prevailing on the

merits. (Code Civ. Proc., § 425.16 (b)(1).)

III.

DISCUSSION

A.

Preliminary

matters.

Plaintiff submits two oppositions. The first is for failure to serve Plaintiff's

counsel and because Defendant cites a case that does not exist. The second

"substantive opposition" filed June 9, 2026, goes to the merits of the motion.

With respect to defective service,

Plaintiff has not shown any resulting prejudice since Plaintiff was able to

file an overlimit, 25-page substantive opposition, which the court has

considered. Defects in service of the notice may be waived, where Plaintiff

never asks for a continuance, files an opposition, does not cite prejudice, and

appears at the hearing. (Carlton

v. Quint (2000) 77 Cal.App.4th

690, 697.)

With respect to the "fabricated" citation

to Governor

Gray Davis Com. v. American Taxpayers Alliance (2002) 102 Cal.App.4th 449, for the proposition that a defendant's burden is not "onerous", there

is no evidence that Defendant is misleading the court since Defendant has

articulated the correct burden. Other cases have expressed a defendant's burden in those terms. (Curtin Maritime Corp. v. Pacific Dredge & Construction, LLC (2022) 76 Cal.App.5th 651, 664 ["A defendant's burden on the first prong is not an onerous one. A defendant need only make a prima facie showing that plaintiff's claims arise from the defendant's constitutionally protected free speech or petition rights. (See Governor Gray Davis Com. v. American Taxpayers Alliance (2002) 102 Cal.App.4th 449, 456.) "]; Optional Capital, Inc. v. Akin Gump Strauss, Hauer & Feld LLP (2017) 18 Cal.App.5th 95, 112 ["The defendant's burden on the first prong is not an onerous one.”].)

B. First prong.

Defendant argues the claims arise from Defendant’s conduct in connection with his court appointed duties as receiver in another action (BC290553 Shashikant Jogani v. Haresh Jogani) and because Defendant’s receivership activity implicates matters of public interest since the receivership was created in connection with “related litigation concerning habitability, compliance, and management of those properties affecting more than 15,000 apartment units.” (Mot. 7:15-17.) Defendant was appointed to manage the business and properties, hire and fire people and pay as necessary. (D's Ex. 4, 5.)

To determine whether the moving party satisfied the first prong, the court considers "the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability." (Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 884.) The court considers whether the alleged conduct arises from protected activity.

Defendant argues that the hiring and firing of Plaintiff was in connection with duties as a court-appointed receiver on an issue of public interest. The trial court in S. Jogani v. H. Jogani BC290553, found good cause to appoint a receiver. (D's Ex. 5.) The court appointed Defendant to act as a receiver for eight entities and their subsidiaries because of the risk that Haresh Jogani would evade a judgment for "billions in damages". (D's Ex. 5, 2:26-28. The court granted Defendant all powers necessary to act as receiver and to collect and distribute money, manage the businesses and properties, conduct accountings, collect and distribute information and provide reports and financial information and to "hire and fire and pay people" as necessary. (Id.

Ex. 5, 4:12-15.)

An act in furtherance of a person’s right of petition or free speech in connection with a public issue includes "(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest." (Code Civ. Proc., § 425.16 subd. (e).)

Subdivision (4) is the “catchall” provision which includes any other conduct that is not a statement or writing conduct but is “similar to what is referenced in subdivision (e)(1) through (e)(3).” (FilmOn.com Inc. v. DoubleVerify Inc. (2019) 7 Cal.5th 133, 144.) Here, the trial court appointed a receiver to safeguard the estate for purposes of a judgment handed down in litigation over a partnership dispute. The litigation required Defendant to report to the court. (D's Ex. 1.)

All of the allegations against Kudla arise from his role as receiver in hiring and ultimately firing Plaintiff. The complaint alleges that Kudla fraudulently induced Plaintiff to resign from his job and work for Kudla for as long as the receivership existed. (Complaint, ¶ 51.a.) Kudla allegedly made false statements regarding the terms of employment. (Id.) Plaintiff alleges Kudla fired Plaintiff in retaliation for Plaintiff's disclosure that JK violated the law. (Complaint, ¶ 64.) Kudla allegedly breached the implied covenant not to terminate without good cause by firing Plaintiff. (Complaint, ¶ 87.) Plaintiff alleges Kudla inflicted emotional distress and engaged in unlawful business practices by engaging in this conduct. (Complaint, ¶ 99.) All of Plaintiff's causes of action against Kudla arise from Kudla's duties as a receiver to hire and fire employees.

Defendant has not persuasively established that the litigation for which he was appointed was in connection with a public issue or an issue of public interest. The receivership grew out of private litigation between parties over a contract dispute over a real estate partnership. (D's Ex. 4.) The receivership became necessary to stop the parties from “theft and looting.” (D’s Ex. 4, 1:20.) The litigation involved control over a “vast real estate empire.” (Id. 2:21-22.)

Defendant cites Semaan v. Mosier (2026) 118 Cal.App.5th 460, wherein the trial court appointed a receiver in a criminal case that prosecuted one of the largest workers compensation insurance fraud cases in California. (Id. 471.) The receiver was appointed in furtherance of the exercise of a constitutional right of petition, the prosecution of a criminal defendant on behalf of the State of California (Id.) There, the receiver exercised control over millions of dollars in stock holdings and liquidation of investment accounts. The court determined that the receiver’s control over assets bore "a direct functional relationship to that prosecution and its effect on the public.” (Id.) In contrast, the litigation here was a private contractual dispute between private parties that did not implicate the public or its interests.

Defendant argues the receivership estate here was made up of 164 apartment complexes consisting of over 15,700 individual residential rental units located across four different states. (Kudla decl, ¶ 5.) Defendant argues that the litigation affected matters of public interest because the “availability and habitability of housing and nuisance conditions in housing are all matters of public interest.” (Mot. 15:8-9.) There is no evidence that the underlying litigation involved housing availability, habitability, nuisance or “compliance” issues. Defendant has not persuasively identified the public’s interest or concern in private litigation involving breach of a partnership agreement.

Plaintiff’s argument that the litigation was not a public issue of widespread interest has merit. (D.C. v. R.R. (2010) 182 Cal.App.4th 1190, 1215 ["In general, ‘[a] public issue is implicated if the subject of the statement or activity underlying the claim (1) was a person or entity in the public eye; (2) could affect large numbers of people beyond the direct participants; or (3) involved a topic of widespread, public interest.’"].) The special verdict submitted by Defendant did not affect “large numbers of people beyond direct participants.” (Id.)

IV.

CONCLUSION

Defendant has not met his burden in the first instance of showing that his conduct in managing real estate entities (and hiring and firing Plaintiff pursuant to those duties) in order to protect a judgment and prevent the parties from “thieving and looting” their real estate empire is a matter of public interest. Accordingly, the claims are not subject to being stricken under the Anti-SLAPP statute. Defendant’s motion is DENIED.